

Smt. Anusuya W/O Anand Ghaste vs Shri Anand S/O Khemanna Gaste on 21 December, 2023

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NC: 2023:KHC-D:14980

CP No. 100139 of 2023

IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH

DATED THIS THE 21ST DAY OF DECEMBER, 2023
BEFORE
THE HON'BLE MRS JUSTICE K.S.HEMALEKHA
CIVIL PETITION NO.100139 OF 2023

BETWEEN:

SMT. ANUSUYA W/O. ANAND GHASTE,
AGE. 38 YEARS, OCC. HOUSEWIFE,
R/AT. TEACHERS COLONY,
ROHIT APARTMENT, BADIGE,
NEAR GAYATRI TEMPLE, HUBBALLI,
DIST. DHARWAD-580023.
MOB: 63625-50447

...PETITION

(BY SRI ZANZA KOSHI, ADVOCATE FOR
SRI GOURISHANKAR H MOT, ADVOCATE)

AND:

SHRI ANAND S/O. KHEMANNA GASTE
AGE. 42 YEARS, OCC. AGRICULTURE
R/AT. GANDHI MARKET, CHIKKODI,

DIST. BELAGAVI-591201.

MOB:77589-90670

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by VISHAL
NINGAPPA

VISHAL PATTIHAL
NINGAPPA Date:
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...RESPONDENT

(NOTICE TO SOLE RESPONDENT IS SERVED)

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF THE
CODE OF CIVIL PROCEDURE, 1908, PRAYING TO TRANSFER THE
MATRIMONIAL CASE NO.68/2021 AS PENDING ON THE FILE OF
PRINCIPAL SENIOR CIVIL JUDGE AT CHIKKODI TO THE PRINCIPAL
JUDGE FAMILY COURT, AT HUBBALLI AND DIRECT TO DISPOSE OFF

THE CASE ON MERITS IN ACCORDANCE WITH LAW, IN THE
INTEREST OF THE JUSTICE AND EQUITY.

THIS CIVIL PETITION, COMING ON FOR ADMISSION, THIS
DAY, THE COURT MADE THE FOLLOWING:

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ORDER

The present petition by the wife seeking to withdraw M.C.No.68/2021 pending on the file of the Principal Senior Civil Judge, Chikkodi and transfer the same to the Principal Judge, Family Court at Hubballi.

2. The petitioner and the respondent are husband and wife and their marriage was solemnized on 29.11.2012 as per the Hindu customs and traditions prevailing in their community. Due to uncordial relationship between the husband and wife they are living separately. Husband filed divorce petition under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955, before the Principal Senior Civil Judge, Chikkodi in M.C.No.68/2021.

3. Heard Sri Zanza Joshi, learned counsel appearing for the petitioner.

4. This Court noticed that the respondent has been served with the notice on 17.09.2022, however, due to non appearance of the respondent the matter was NC: 2023:KHC-D:14980 adjourned to afford an opportunity to him to make his appearance. Respondent is not represented nor he chose to remain present-in-person. This Court has no option to consider the petition on merits.

5. Learned counsel for the petitioner would submit that the petitioner is residing along with her parents at Hubballi and the travel distance between Hubballi to Chikkodi is around 160 Kms., causing inconvenience to the wife to attend the proceedings. Learned counsel would contend that, the paramount concern of the Court in the matrimonial matters where a transfer is sought, the convenience of the wife needs to be looked into.

6. Section 24 of CPC enumerates the Courts to transfer the petition when justice demands. Usually when a transfer petition is filed by the wife, the convenience of the wife is to be looked into rather than inconvenience that would be caused to the husband.

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7. The Apex Court in the case of Sumita Singh Vs. Kumar Sanjay and another¹ has held that convenience of the wife must be looked into.

8. The Apex Court in the recent decision, in the case of N.C.V. Aishwarya vs. A.S.Saravana Karthik Sha2 has held that at paragraph No.9, which reads as under:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, AIR 2002 SC 396 2022 SCC OnLine SC 119 NC: 2023:KHC-D:14980 it is the wife's convenience which must be looked at while considering transfer."

9. In the instant case, wife is aged about 38 years residing at Hubballi, the travel distance between Hubballi and Chikkodi is around 160 Kms., causing inconvenience to the wife than the inconvenience that would be caused to the husband. Accordingly, the petition filed by the wife needs to be allowed and this Court pass the following:

ORDER

(i) Civil petition is hereby allowed.

(ii) M.C.No.68/2021 pending on the file of the Principal Senior Civil Judge, Chikkodi is withdrawn and transferred the same to the Principal Judge, Family Court, Hubballi.

Sd/-

JUDGE EM, CT: UMD